

Kallu Kuraishi @ Rafiq v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 February 2020 · Writ - C No. 7268 of 2020 · **Writ disposed; Executive Engineer to decide the pending clause 6.5 representation within one month, with a one-month stay of coercive action, the petitioner to abide by that decision.**

HEADNOTE

A writ challenging a disputed electricity bill, where the consumer's representation already lies pending before the Executive Engineer, is disposed of by directing that officer to consider the claim and pass an appropriate order under clause 6.5 of the Electricity Supply Code, 2005, as far as possible within one month, with no coercive action in the interim.

FACTUAL SUMMARY

Kallu Kuraishi @ Rafiq petitioned the Allahabad High Court against a disputed electricity bill. He had already made a representation to the Executive Engineer, which remained pending. Counsel for the petitioner, the State, and the distribution-licensee respondents were heard. The Division Bench did not examine the bill on merits and treated the pending representation as the forum for the dispute under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing representation remitted to Executive Engineer

HOLDING

Where a representation against a disputed electricity bill is pending before the Executive Engineer, the writ is disposed of by directing that officer to consider the claim and pass an appropriate order under clause 6.5 of the Electricity Supply Code, 2005, as far as possible within one month; no coercive action is to be taken in that period, and the consumer is to abide by the Engineer's decision. ¶ 3-4

PRINCIPLE TAGS

6.5-pending-complaint-writ-remitted The pending representation before the Executive Engineer was treated as the live clause 6.5 proceeding, and the writ was disposed of by remitting that representation for a time-bound decision rather than adjudicating the bill. ¶ 3-4

clause-6.5-statutory-remedy-disputed-bill Clause 6.5 was applied as the statutory forum for the disputed bill, with a direction to pass an appropriate order under that clause. ¶ 3

clause-6.5-alternate-remedy The Court declined to decide the bill in writ and relegated the consumer to the pending clause 6.5 representation, with only a short stay of coercive action. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Left to the Executive Engineer under clause 6.5; the Court did not examine the bill on merits. ¶ 3